$267,000 raised. A game sold. An NFT promise left behind.

Executive summary

SSRWives raised 147.16 ETH—approximately $267,000—with specific benefits offered to NFT holders. The pitch included a token-gated arcade, free initial access, wallet-linked features and rewards. Holder-demo and alpha targets followed in 2023 and 2024. The reviewed archive contains no documented delivery of those holder builds, the arcade or the wallet-linked reward system. [E01–E04, E06–E08, E10]

The game was sold; the NFT remained with the seller. The 2025 agreement transferred the game assets to XYZ AI and expressly retained the NFT and its exclusive IP with the seller named as Studio Hen, represented by **Sarah Balda, known online as Kyoko (@bbykyoko, later @hope_indecay)**. It reserved $100 plus a one-year 12.5% net-revenue share for the seller, while specifying no holder-benefit, refund or replacement plan. Asked after the sale what role NFTs played, Kyoko answered: “nothing at this time.” [E13–E14]

The later dispute over the game produced a court finding of material breach. On May 29, 2026, after two days of evidentiary hearings, a Florida court granted XYZ AI a preliminary injunction. The court found XYZ owned the game IP and had fulfilled its obligations. It recorded sworn testimony from **David Cortes, known online as HedProtag/Protag (@HedProtag),** that he retained all SSR IP source code on his personal computer despite repeated return demands. It found material breaches by the individual defendants, barred using that IP to develop, launch or promote the game, and ordered confidential information and equipment returned within ten days. [E16]

The central accountability question runs through the entire record: **buyers funded a holder-benefit promise, the seller retained the NFT, and the game buyer had to obtain an injunction over the assets it purchased.** The holders’ promised benefits and the development-funding allocation still require a documented account. [E02–E05, E14, E16]

Evidence included. The packet contains five investigation graphics; preserved public posts and screenshots; Ethereum transaction, wallet and historical price records; selected game-sale and IP-assignment pages; our complaint; and the preliminary-injunction order, both complete and in key-page excerpts. A plain-language inventory and 15-exhibit evidence index explain what each item shows and link to the underlying files.

Prepared October 23, 2026. What’s included · Evidence and source files · Coverage and calculation method · File checksums

The investigation

SSRWives sold its NFTs with a concrete offer: help fund the game and receive benefits as a holder. The pitch described a token-gated arcade, free initial access, wallet-linked features and rewards. Later posts put dates on holder access. The mint brought in **147.16 ETH — approximately $267,000 at the time.** [E01–E04]

In early 2025, the seller named in the agreement as Studio Hen sold the game assets to XYZ AI, Inc. The agreement expressly left the NFT and its exclusive intellectual property with Studio Hen, the seller represented by **Sarah Balda, known online as Kyoko (@bbykyoko, later @hope_indecay)**. It provided a future revenue share for the seller and specified no corresponding plan for NFT-holder benefits, refunds or replacement utility. [E14]

Then, on May 7, 2025, Balda, posting as Kyoko, was asked what role the NFTs played. Her answer was direct: **“nothing at this time. It’s just the demo but demo will be free to play for all”.** [E13]

The money, the promises, the sale and that answer belong in the same story.

The original fundraising materials made ownership of an SSRWives NFT part of the game proposition. The March 2023 pitch deck described exclusive access and cosmetics. Kyoko’s March 28 article developed the offer: a second, token-gated arcade before the main game; free initial access to both games for NFT holders; wallet-linked collection features; exclusive items and NFT rewards. The article ended with a direct appeal to mint to fund the project. These were reasons to buy and hold the NFT. [E01–E02]

The team also made a specific representation about the money. On May 2, the official account said that **“2/3rds of the money we make from it goes directly to the game development”**, with the remaining amount giving the team a cushion to step back from other jobs. Ten days later, after sell-out, the account described half of the remaining treasury going to future developer payroll and half to advance team salaries for work on the game. [E03, E05]

Ethereum records put the raise at 2,880 paid NFTs, plus 330 free or reserve tokens. All 147.16 ETH was withdrawn from the mint contract by May 12, 2023. Across the recorded contract and deployer transfers through July, the two wallets publicly associated with **Sarah Balda (Kyoko)** and **David Cortes (HedProtag/Protag)** received **61.17 ETH**, worth approximately **$111,149 at the transfer dates**. The announced payroll wallet received **56.01 ETH**, about **$101,286**; a Coinbase-labelled deposit received **32.21 ETH**, about **$58,573**. The Coinbase account holder is unidentified. [E04]

The chart follows the money through each stage, including 3.031954 ETH of other deployer inflows, transaction costs and the closing balance. The later payroll payouts are shown separately: 92,962.11 USDC paid to seven addresses, including 5,500.11 USDC to kyokoWallet. The project’s two-thirds representation remains an accounting question: the reviewed materials contain wallet records and salary descriptions, but no expense reconciliation showing how that allocation was fulfilled. [E03–E05]

The holder-access promise kept returning. On May 29, 2023, the official account estimated a playable holder demo roughly six months away, around the end of the year. In August, David Cortes, posting as HedProtag/Protag (@HedProtag), reiterated a free game at launch and the first demo near year-end for NFT holders. In October 2024, he was still offering priority: a private alpha first for the people who had supported the project through its NFT collection, within the next weeks. [E06–E08]

The reviewed record contains **no documented distribution of the end-2023 holder demo or the late-2024 holder alpha**, and no documented delivery of a token-gated arcade or wallet-linked reward system. The specific early-access offer was still being renewed more than a year after the first target. [E02, E06–E08, E10]

There was already tension in the messaging before the sale. About nine hours after his August 2023 holder-benefit post, Protag said the base game had no NFT integration and described the NFTs as crowdfunding. Free copies and early access could still have been supplied outside the game; the separate arcade and wallet-linked offer still required delivery. The sale later made the asset separation explicit. [E02, E07, E14]

The Asset Purchase Agreement was effective February 24, 2025 and signed March 7. The related assignment was dated March 18. Studio Hen agreed to transfer the game's code, artwork, brand assets, domains and social accounts to XYZ AI. The NFT and rights exclusively relating to it were expressly excluded and retained by Studio Hen. Sarah Balda (Kyoko) signed the APA for Studio Hen as Creative Director and the assignment as a Member. [E14]

The contract was specific about the seller's financial interest: **$100 cash plus 12.5% of net revenues for one year.** It was also specific that liabilities not assumed by the buyer remained with the seller. Yet the sale documents named no plan to deliver the promised holder builds, preserve NFT utility, replace the benefits or refund purchasers. Both parties signed an agreement that separated the game assets from the NFT; a holder settlement was absent from that agreement. [E14]

The sale agreement reserved a one-year revenue share for the seller. It recorded no arrangement addressing the earlier holder-benefit promises. [E14]

The post-sale public statements make the practical separation clear. On May 7, someone asked Sarah Balda, posting as Kyoko/@hope_indecay, what part NFTs played in development. She answered that they played "nothing at this time" and that the demo would be free for everyone. A public demo was available by June 11, 2025. Later that month, David Cortes, posting as Protag, stated on Steam that no NFTs were tied to the game. On Discord, he described the NFTs as funding the initial pitch and creation, adding: **"That already happened."** [E09–E10, E13]

That is the central accountability failure: **the fundraising was treated as finished while the record of delivery to holders remained missing.** A public demo available to everyone gives NFT purchasers no distinct priority. Selling the game, retaining the NFT rights and describing the raise in the past tense leaves the original holder offer unanswered.

The game sale was also followed by a dispute over the game assets themselves. On November 3, 2025, we filed suit as XYZ AI, Inc. against Sarah Balda (Kyoko), David Cortes (HedProtag/Protag) and other defendants, alleging that after their employment ended they refused to return the source code, game assets, build files, databases and accounts, while continuing to use the purchased IP. The complaint sought damages and injunctive relief for breach of contract and related claims. [E15]

On **May 29, 2026**, after evidentiary hearings on March 6 and May 20, Judge Thomas Ramsberger granted XYZ AI's preliminary injunction. The order found that XYZ had become the **"sole and exclusive owner"** of the SSR Wives game IP, had fulfilled its obligations under the governing agreements, and that ownership was unambiguous. It also found that XYZ had paid the closing consideration, taken over payroll and funded further development. [E16] (pp. 3–4, ¶¶9–10)

The order records a direct admission about the code: **"Cortes testified under oath at the hearing that he retains all SSR IP source code on his personal computer, notwithstanding the Plaintiff's repeated demands for its return."** [E16] (p. 8, ¶32)

The court found that **"The Individual Defendants materially breached their respective NDAs and the Governing Documents in several independently sufficient ways."** It identified failures to return the IP and equipment, unauthorized use and development of the game IP, and assertions of ownership inconsistent with the sale. The order found XYZ substantially likely to succeed on the merits. It also described the practical consequence of the retained property: XYZ could not develop, market or release SSR Wives without its return. [E16] (pp. 9–10, ¶39; pp. 15–16, ¶¶57–60)

The injunction barred using the purchased IP to develop, launch or promote SSR Wives, or to develop a derivative game, and barred claiming ownership of that IP. It required the return of XYZ's confidential information and equipment within **ten days**, along with immediate preservation of relevant devices and accounts and submission for forensic imaging within **twenty days**. The contractual breach is now a finding in the preliminary-injunction order, alongside the earlier public record of NFT fundraising and unanswered holder commitments. [E16] (pp. 17–18, operative ¶¶2–5)

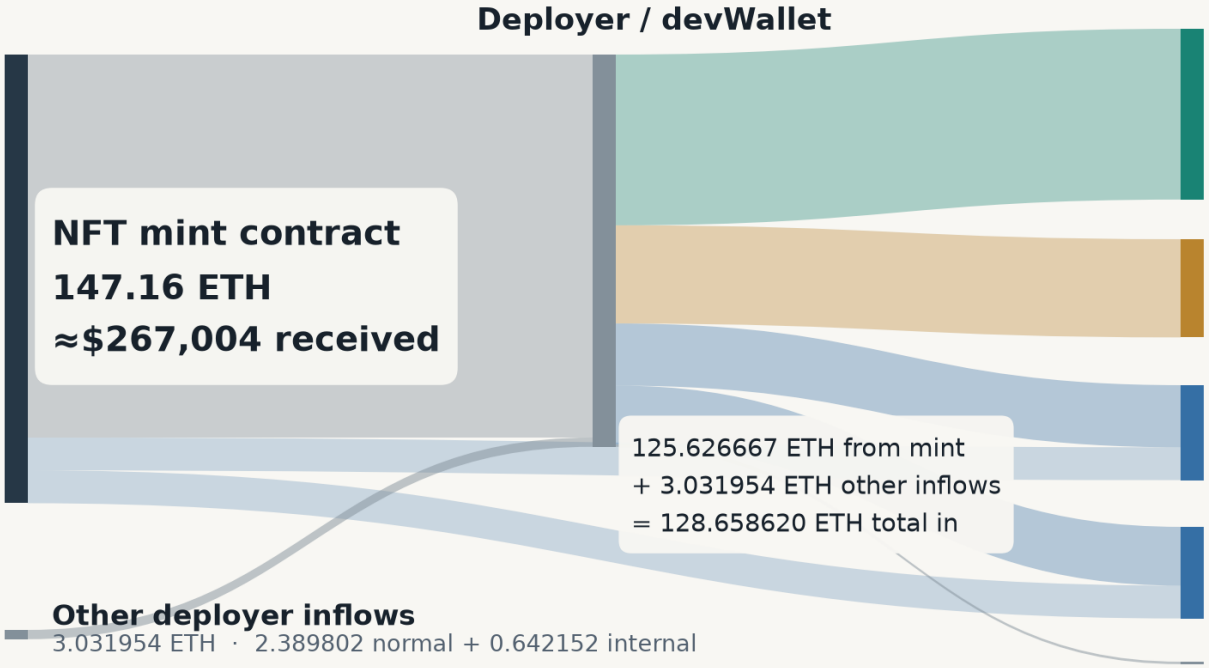
As checked on October 23, 2026, the full game's Steam listing still said **"Coming soon"** and offered a public demo. The free full-game copy was promised at launch; the earlier holder-access targets had already come and gone. The outstanding record is concrete: the holder-build distributions, the promised arcade and wallet features, the reconciliation of the development-funding pledge, and the seller's plan for the NFT it retained. [E07, E10, E14]

The NFT buyers supplied the funding. The seller retained the NFT assets. The game entered a separate sale. What remains missing is a documented fulfilment of the specific holder benefits that helped raise the money.

Where the NFT money went

147.16 ETH raised · ≈$267,004 at mint dates · 2,880 paid NFTs

RECORDED ETH TRANSFERS
March 21–July 31, 2023 · Ethereum mainnet · ribbon width = ETH



DESTINATION TOTALS
ETH plus approximate USD value at transfer dates

Named payroll wallet
56.01 ETH · ≈$101,286
0x6818…5cf1 · published as future developer payroll
See the downstream USDC record below.

Coinbase-labelled deposit
32.21 ETH · ≈$58,573
0x7de1…40da · account holder unidentified

kyokoWallet / Sarah Balda (Kyoko)
31.14 ETH · ≈$56,561
10.766667 from contract + 20.37 from deployer

artWallet / David Cortes (HedProtag)
30.04 ETH · ≈$54,588
10.766667 from contract + 19.27 from deployer

0.55 ETH other transfers · ≈$1,012
+ 0.173211 ETH gas + 0.075410 ETH closing balance

PAYROLL FOLLOW-THROUGH / MAY 2023–MARCH 2024

53 ETH swapped
93,086.20 USDC received
May 12, 2023 UTC

92,962.11 USDC paid out
39 payouts to 7 addresses
Includes 5,500.11 USDC to kyokoWallet

0 USDC remaining
After March 8, 2024 UTC payout
Final 1,500.11 USDC → kyokoWallet

USDC reconciliation: 93,086.200052 − 92,962.114971 payouts − 120 spender transfer − 4.085081 round-trip difference = 0.
The payroll wallet retained 0.00036369216618 ETH. This panel follows part of the 56.01 ETH already shown above.

READING THE RECORD
Gross transfers include 3.031954 ETH of non-mint inflows. USD uses Coinbase daily UTC closing prices at each receipt or transfer; amounts are approximate.
Wallet labels: verified contract, preserved OpenSea profiles and the official payroll post. “Payroll” is the published address label; transfers show destination, not all project expenses.
Sources: E04 (Ethereum ledger), E05 (payroll statement). Exact amounts, transaction links and price data: money_flow_data.json. Prepared October 23, 2026.
People / handles: Sarah Balda = Kyoko (@bbykyoko / @hope_indecay); David Cortes = HedProtag / Protag (@HedProtag). See METHOD.md.

Funded in 2023.
Separated in 2025.

The fundraising offer, repeated access targets, the sale, and the later answers.

Sarah Balda = Kyoko (@bbykyoko / @hope_indecay)

David Cortes = Protag / HedProtag (@HedProtag)

28 MAR 2023

The offer: a reason to own the NFT

Kyoko promotes a token-gated arcade, free initial access to both games, wallet-linked features and NFT rewards. [E02]

MAR–MAY 2023

147.16 ETH raised — about $267,000

2,880 paid mints plus 330 free/reserve tokens. The full 147.16 ETH is withdrawn from the mint contract by May 12. [E04]

29 MAY 2023

A holder demo targeted for year-end

The project estimates roughly six months to a playable demo for holders. Protag reiterates first-demo access that August. [E06–E07]

29 AUG 2023

The distancing already begins

Hours after promising holder benefits, Protag says the base game has no NFT integration and describes the NFTs as crowdfunding. [E07]

25 OCT 2024

Holder priority is promised again

Protag says NFT supporters will get the private alpha first, within the next weeks. [E08]

FEB–MAR 2025

The game is sold; the NFT is retained

APA effective Feb 24, signed Mar 7; assignment dated Mar 18.
Game assets go to XYZ AI; the NFT and exclusive NFT IP stay with Studio Hen. [E14]

7 MAY 2025

Kyoko: “nothing at this time”

Asked what role NFTs play, she says the demo will be free for all. The question and reply are preserved together. [E13]

JUN 2025

A public demo, then “no NFTs Tied”

A public demo is available June 11. On June 24 UTC, Protag states that no NFTs are tied to the game. [E09–E10]

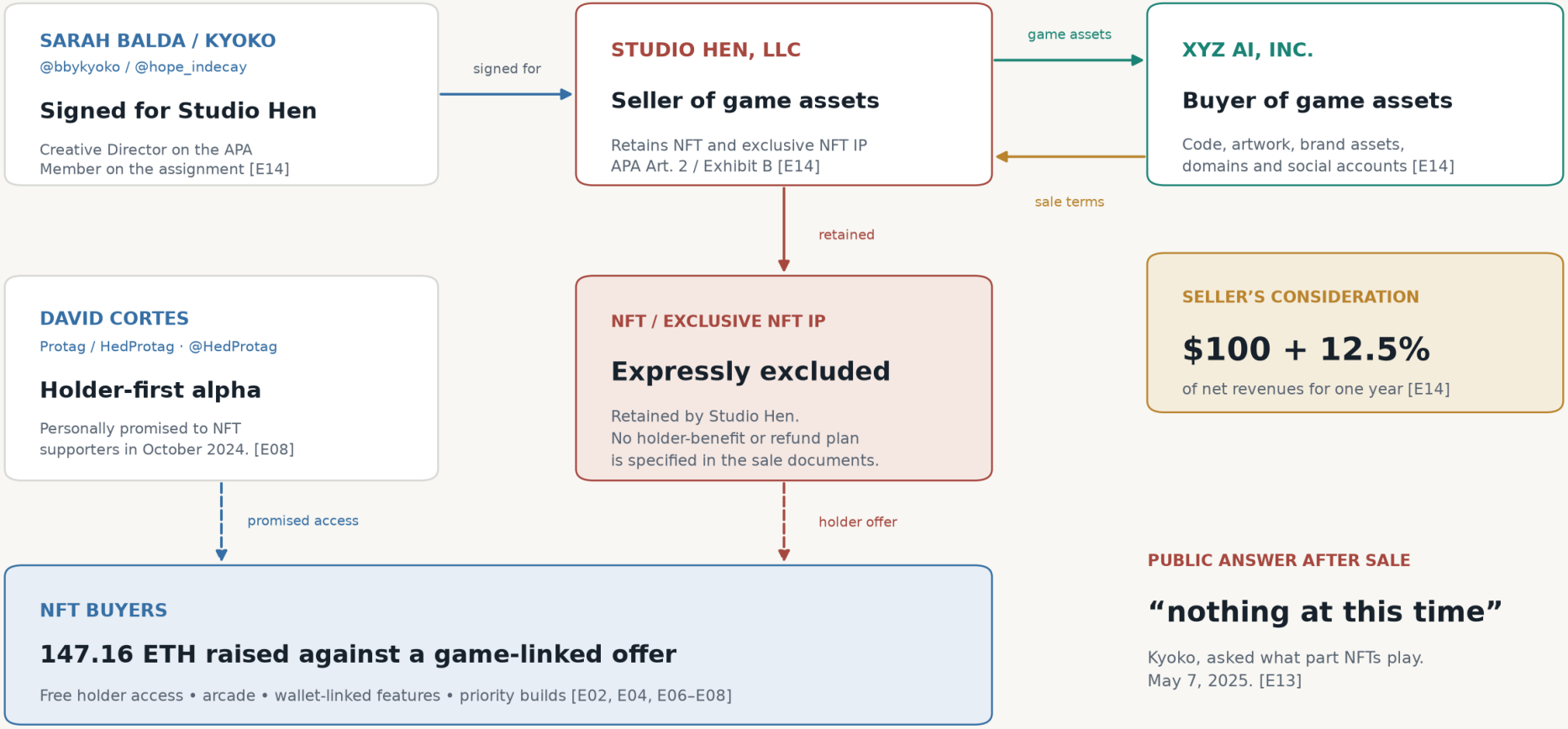
The 2023 holder demo and 2024 holder alpha have no documented delivery in the reviewed record.

Dates are UTC. Event spacing is for readability. Source details and record coverage: EVIDENCE_INDEX.md and METHOD.md.

THE PEOPLE, THE PROMISES, THE SALE

The game went to the buyer.
The NFT stayed with the seller.

Contractual asset split in the 2025 sale documents; public holder promises shown separately.



PUBLIC ANSWER AFTER SALE

"nothing at this time"

Kyoko, asked what part NFTs play.
May 7, 2025. [E13]

Solid arrows: documented signing or asset/consideration terms. Dashed arrows: public promises. Sources: E02, E04, E08, E13, E14.
People / handles: Sarah Balda = Kyoko; David Cortes = Protag / HedProtag. See METHOD.md.

THEIR WORDS, BEFORE AND AFTER THE SALE

From holder access to “nothing at this time.”

28 MARCH 2023 • SARAH BALDA (KYOKO)

The fundraising pitch

“You will also be able gain free initial access to both games if you are a SSRWives NFT Holder.”

Alongside a proposed token-gated arcade, wallet-linked collection features and rewards.

Source: SSRWives: The Next Step [E02]

7 MAY 2025 • SARAH BALDA (KYOKO)

The answer after the sale

Asked what part NFTs play:

“nothing at this time. It’s just the demo but demo will be free to play for all”

Source: @hope_indecay reply + question [E13]

Sarah Balda = Kyoko • @bbykyoko / @hope_indecay

THE DOCUMENTED SEQUENCE

147.16 ETH raised. Repeated holder-access targets. A game-asset sale that expressly excluded the NFT.

Documented quotations, retaining original wording. This is an editorial comparison, not a screenshot. Full context: E02 and E13.

The sale was followed by a court-ordered return.

Preliminary-injunction order · XYZ AI v. Balda et al.

Findings after two days of evidentiary hearings; relief concerning the game IP and company property.

Sarah Balda = Kyoko (@bbykyoko / @hope_indecay) · David Cortes = Protag / HedProtag (@HedProtag)

01 / OWNERSHIP AND PERFORMANCE

The game belonged to XYZ.

The court found XYZ was the sole and exclusive owner of the SSR Wives game IP and had fulfilled its contractual obligations.

Order p. 4, ¶10 [E16]

02 / RETAINED SOURCE CODE

David Cortes kept the code.

Protag / HedProtag · @HedProtag

He testified under oath that all SSR IP source code remained on his personal computer despite repeated demands for its return.

Order p. 8, ¶32 [E16]

THE COURT'S BREACH FINDING AND THE RELIEF ORDERED

03 / MATERIAL BREACHES

The agreements were breached.

In granting the preliminary injunction, the court found that the individual defendants materially breached their NDAs and governing agreements.

Order pp. 15–16, ¶57 [E16]

04 / RETURN AND PRESERVATION

Return the property.

Use of game IP and ownership claims barred.*

10 days Return confidential information and company equipment.

20 days Submit relevant devices, media and accounts for forensic imaging.

Immediate preservation required. Order pp. 17–18 [E16]

*Bars using SSR IP to develop, launch or promote SSR Wives or develop derivative games, and claiming ownership of SSR IP.

Source: May 29, 2026 order, Pinellas County Circuit Court, case 25-006213-CI-19. Deadlines run from entry. Evidence E16.

E02 / THE NFT-HOLDER OFFER

Official repeat of the integration offer, May 4, 2023 UTC. Full original article and source metadata are supplied in E02. Enlarged detail from the original capture; complete screenshot retained in the source folder.

NFT Integration Element:

Our development team is excited to announce the creation of a second token-gated arcade mode, which will be accessible to players before the official launch of our primary game. This innovative mode combines the gameplay elements of classic arcade titles, such as Frogger, with the dynamic action of shooter games. You will also be able gain free initial access to both games if you are a SSRWives NFT Holder. You will be able to create a digital harem of sorts by saving the Wives in game & your wallets collection.

Players who participate in this arcade mode will have the opportunity to earn valuable rewards, including exclusive in-game skins and items. Additionally, top-tier players can expect to receive limited-edition, high-value NFTs as a testament to their exceptional skill level. By engaging our player base with this token-gated feature, we aim to foster an enthusiastic community and generate excitement for our primary game release.

TLDR:

SSRWives: The Murder of My Winter Crush is a 90's inspired survival horror game that pays homage to classic titles like Silent Hill by capturing the essence of what made those games so memorable. The combination of atmospheric storytelling, challenging puzzles, strategic combat, and psychological horror elements will provide a truly immersive and terrifying experience for fans of the genre. It would be used as a show on how we can bridge the game between Web 2 gaming & the new emerging world of Web 3 gaming.

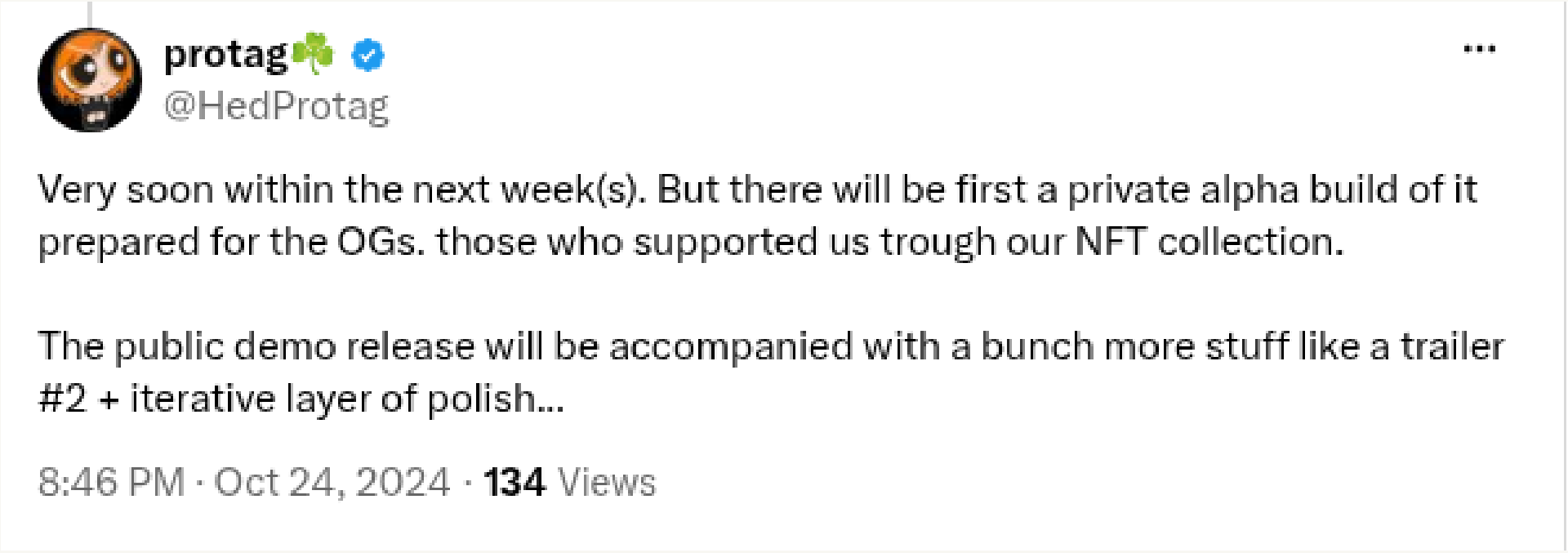
MINT @ SSRWIVES.XYZ TO HELP SUPPORT THIS PROJECT, WITHOUT FUNDING NONE OF THIS WILL BE POSSIBLE

Open the original public source

Source images preserved unchanged. Supporting context and hashes are in the proposed repository.

E08 / THE RENEWED HOLDER-FIRST ALPHA

David Cortes (HedProtag/Protag, @HedProtag), October 25, 2024 UTC. Private alpha first for supporters through the NFT collection. Enlarged detail from the original capture; complete screenshot retained in the source folder.



protag🍀
@HedProtag

Very soon within the next week(s). But there will be first a private alpha build of it prepared for the OGs. those who supported us trough our NFT collection.

The public demo release will be accompanied with a bunch more stuff like a trailer #2 + iterative layer of polish...

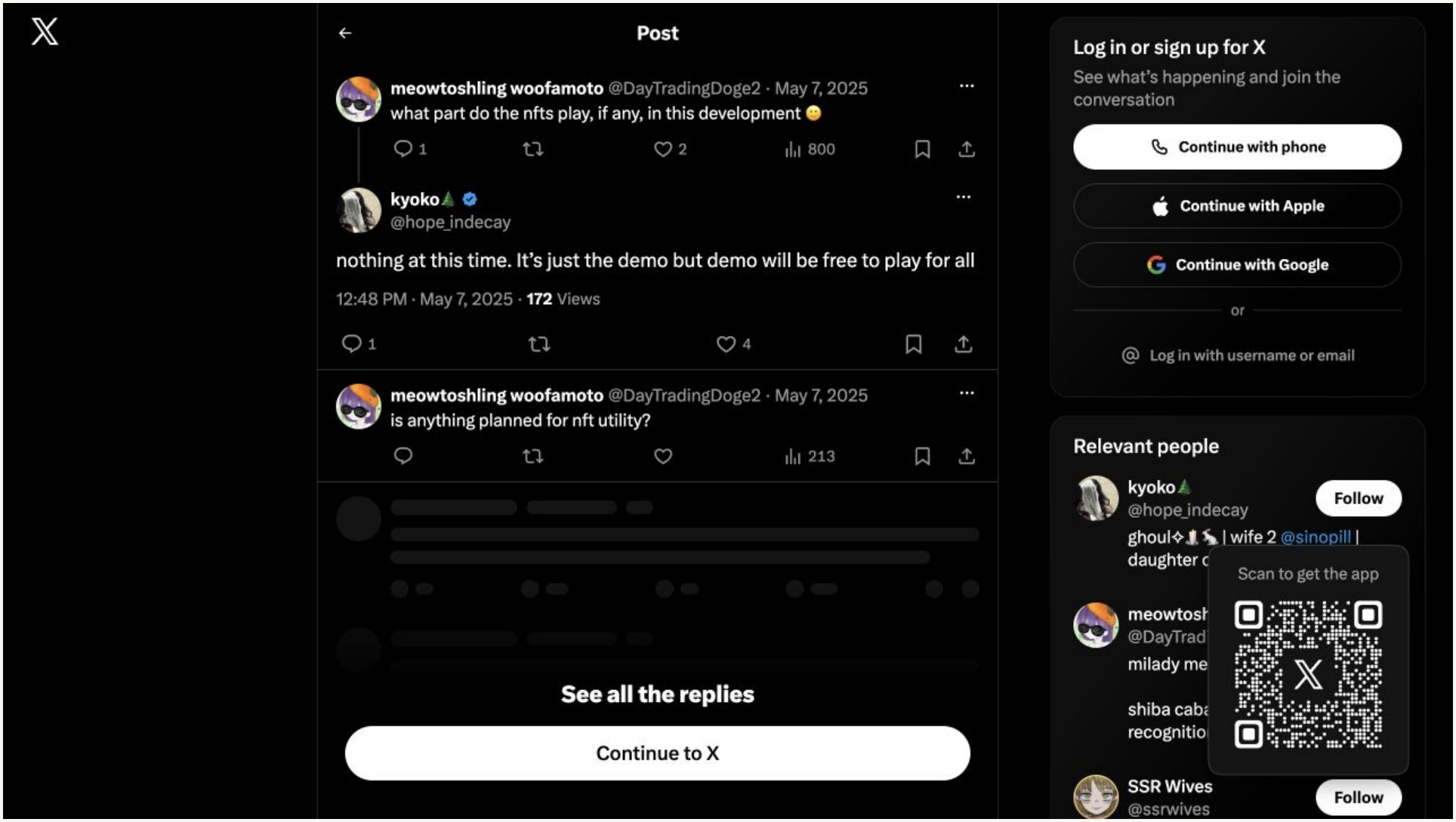
8:46 PM · Oct 24, 2024 · **134** Views

Open the original public source

Source images preserved unchanged. Supporting context and hashes are in the proposed repository.

E13 / THE ANSWER AFTER THE SALE

Sarah Balda (Kyoko, @hope_indecay), May 7, 2025. Logged-out public capture made October 23, 2026; question, complete reply and follow-up visible together.

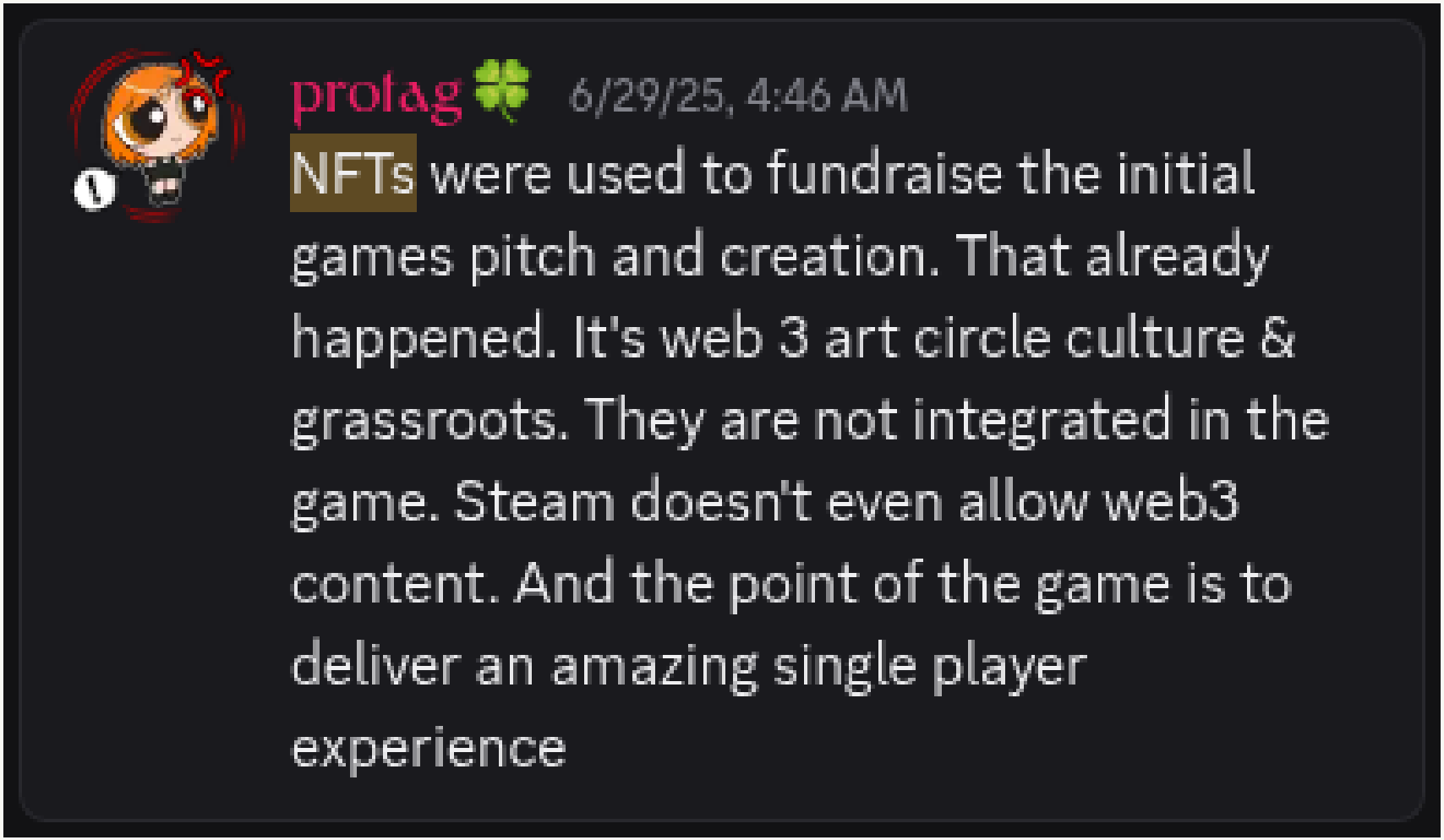


Open the original public source

Source images preserved unchanged. Supporting context and hashes are in the proposed repository.

E09 / “THAT ALREADY HAPPENED.”

David Cortes (HedProtag/Protag), June 29, 2025. Original preserved Discord search-result capture; complete text wraps within the result.



Open the original public source

Source images preserved unchanged. Supporting context and hashes are in the proposed repository.

Source coverage and method

Prepared October 23, 2026. This evidence record covers the fundraising, holder offers, sale and later game-asset litigation.

This record brings together preserved public statements, Ethereum transactions, the sale agreements, our complaint and the May 29, 2026 preliminary-injunction order. Quotations and transactions link to their sources. The court's ownership, performance and material-breach findings are attributed to the order.

Identity and attribution. David Cortes is HedProtag/Protag (@HedProtag) and **Sarah Balda is Kyoko (formerly @bbykyoko, later @hope_indecay)**. These names and handles refer to the same two people throughout the narrative and editorial graphics. Signed documents identify Sarah Balda's role for the seller. The court filings identify David Cortes as a game developer and former XYZ employee. The historical @bbykyoko and later @hope_indecay account records share X user ID 1272997779942502400; Substack metadata ties the kyoko byline to @bbykyoko. An official-account post is attributed to the account, rather than to an unidentified person who typed it. Post-sale @ssrwives posts are not assigned to the former team. See identity record.

Delivery coverage. The source casefile reviewed preserved X posts, Steam records and the later game Discord through October 18, 2026. The original 2023 Discord is unavailable, leaving private or deleted distributions outside the searchable record. "No documented delivery" reports what that record contains. E10 includes the holder-search report, the Steam check and 108 unique demo-message results. Fresh checks on October 23 verified the May 7, 2025 question/reply, the original Substack article and the current Steam store status; they were not a new exhaustive search of all channels. The free full-game benefit was conditional on launch, while the earlier holder-build targets were dated.

Chronology. Main dates use UTC; screenshots can display Pacific local dates. The August 2023 no-integration statement predates the sale. Pre-sale Steam captures already lacked NFT text. The sale documents specify asset exclusions, rather than a technical instruction to remove game functionality. The original pitch offered a freemium base game alongside additional NFT benefits.

Money. Reverted transactions are excluded using preserved receipts. Integer wei values are used for reconciliation. Gross mint receipts are 147.16 ETH. The deployer's later transfers include 3.031953645999154159 ETH of other inflows; downstream destinations therefore are not exclusive percentage slices of mint receipts. Gas and the closing balance complete the reconciliation. Transfers into the named payroll wallet measure that address's funding, not every development expense. The contemporaneous team explanation called the other half of the remaining treasury advance salaries for work on the game. The chart follows destinations and does not assign unidentified exchange-account ownership or later spending.

Dollar values use Coinbase daily UTC ETH/USD closes on each receipt or transfer date. They are approximate historical equivalents. USDC is reported at face value. Payroll payouts are a later stage of already-counted funding. See exact calculation and transaction links, reconciliation, and price records.

Contracts. The APA identifies Studio Hen, LLC as seller. Its NFT exclusion retains assets with that company. Sarah's signature for the company is not a separate personal assignment of the NFT. Both parties agreed to the exclusion. Consideration is $100 plus a one-year 12.5% share of net revenues. The May 29 order finds that XYZ paid the closing consideration and fulfilled its obligations (pp. 3–4, ¶¶9–10). No revenue-share payment total is reported in this packet. The excerpt contains complete selected source pages, with a provenance cover and original page numbers. The original APA/IP-assignment contact and signature pages remain outside this publication packet.

Court records and naming. E15 contains selected complete pages from the complaint filed November 3, 2025; its claims are allegations. E16 contains the complete May 29, 2026 preliminary-injunction order and a labelled key-page excerpt. The order follows evidentiary hearings on March 6 and May 20. Its material-breach findings are preliminary-injunction findings, not a default judgment or final merits judgment. The order concerns the buyer's game/company IP, not NFT-holder claims. This review does not assess post-order compliance or any later docket developments. The complaint names Hen Studios, LLC and alleges that the APA's "Studio Hen, LLC" name was incorrect (p. 7, ¶31; p. 10, ¶55); the narrative preserves the agreement's seller name. The court spells David's surname "Cortes"; the APA uses "Cortez." The APA's effective date is February 24, 2025; signature records show

March 7. The complaint contains inconsistent NDA years; the attached NDAs and order give Cortes's as December 27, 2024 and Balda's as February 24, 2025.

Preservation. The reassembled FULL archive has SHA-256 `171f7152129c91cf94778438178dc3adc8e778e422edf974f1a0260a548bd699`. Its supplied checksum and ZIP integrity test passed. Original parts, archives and documents are unchanged. Selected archive files were copied byte for byte; SOURCE_MANIFEST.json records their archive paths and hashes. Fresh captures and derivatives are labelled separately. SHA256SUMS.txt seals the files in this repository, excluding the checksum file itself. A matching hash verifies bytes, not the truth of a source's statement.

No interviews or outreach were performed. The casefile and this narrative are analyses; embedded screenshots, raw records, contract pages and court filings let readers examine the underlying material.

Source key

E01 — The original fundraising pitch. Public source

E02 — NFT utility and free holder access. Public source

E03 — The two thirds development pledge. Public source

E04 — Mint receipts and the money trail. Public source

E05 — The disclosed treasury split. Public source

E06 — The holder demo target. Public source

E07 — Protag promised holder benefits and described crowdfunding. Public source

E08 — A renewed private alpha promise to NFT supporters. Public source

E09 — The later public statement that no NFTs were tied to the game. Public source

E10 — The later demo and current full game status. Public source

E11 — The runway statement and the payroll balance. Public source

E13 — Kyoko's May 7, 2025 answer. Public source

E14 - Selected sale documents follow this section. The excerpt cover maps each page to its original document and SHA-256 hash.

E15 - Original complaint filed November 3, 2025, case 25-006213-CI. Selected allegations follow with a source-page guide; complete original retained locally.

E16 - May 29, 2026 preliminary-injunction order, case 25-006213-CI-19. Key original pages follow; the complete 19-page order is also in the source folder.

SSRWives sale: selected clauses

Sale document excerpts | Document guide | 23 October 2026

What this file contains

Original APA pages 1, 4, 5 and 16, followed by original IP Assignment page 2. The selected pages identify the parties, the NFT exclusion, retained liabilities, purchase consideration, purchased assets, and the controlling agreement.

How to cite the exhibits

APA p. 1: XYZ AI, Inc. and Studio Hen, LLC; effective date and NFT exclusion.
APA p. 4: Excluded Assets and No Assumption of Liabilities.
APA p. 5: $100 cash consideration plus 12.5% of Net Revenues.
APA p. 16: Exhibit A (Purchased Assets) and Exhibit B (Excluded Assets).
IP Assignment p. 2: section 3 makes the Purchase Agreement controlling.

Document handling

This excerpt combines complete original pages with this document guide. Original page numbering is retained. The original PDFs remain unchanged. Signature and contact pages are omitted. No content on any selected source page has been redacted or rewritten. The original files contain digital signatures; this derivative excerpt does not reproduce their verification.

Original file SHA-256 fingerprints

asset_purchase_agreement_2025-02-24.pdf

`e174686b7edc4f21a1425da9b0eb954da282d4c6b9469b263daf1a000ab60b8e`

ip_assignment_2025-03-18.pdf

`4519338213d5a13738ca6981782ac3e3fca830bf9aeac07c7fa5c801246eba64`

Compiled October 23, 2026. Cite the original document and page numbers above.

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ASSET PURCHASE AGREEMENT

This ASSET PURCHASE AGREEMENT (this "**Agreement**") is made and entered into as of February 24, 2025 (the "**Effective Date**") by and among XYZ AI, Inc., a Delaware corporation ("**Buyer**"), and Studio Hen, LLC, a Minnesota limited liability company ("**Seller**"). Buyer and Seller are sometimes each referred to herein as a "**Party**" and collectively as the "**Parties**."

WHEREAS, Seller is engaged in the development, marketing, and exploitation of certain intellectual property and other assets related to the SSRWives game brand (the "**Business**");

WHEREAS, Seller owns certain assets used or held for use in the conduct of the Business, including (without limitation) certain intellectual property rights (the "**Purchased Assets**," as defined herein);

WHEREAS, Seller desires to sell, assign, transfer, convey, and deliver to Buyer, and Buyer desires to purchase and acquire from Seller, all of Seller's right, title, and interest in, to, and under the Purchased Assets, subject to and in accordance with the terms and conditions set forth in this Agreement;

WHEREAS, the Parties acknowledge that an NFT (non-fungible token) developed by Seller and all intellectual property rights exclusively relating thereto are specifically excluded from the Purchased Assets (the "**Excluded Assets**," as defined herein); and

WHEREAS, as part of the transaction contemplated by this Agreement, the Parties intend to provide for certain transition arrangements for key personnel, including David Cortez, who is the sole employee of Seller, on the terms and conditions set forth herein and in a separate written Transition Agreement (as defined herein).

NOW, THEREFORE, in consideration of the premises, and of the mutual covenants, representations, warranties, and agreements hereinafter set forth, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties, intending to be legally bound, hereby agree as follows:

ARTICLE 1

DEFINITIONS

1. **Definitions.** As used in this Agreement, the following capitalized terms shall have the meanings set forth below. Other terms may be defined in the body of this Agreement

Docusign Envelope ID: 0F4DA5B7-BFFE-4F75-B130-3201EFB14CC4

n) "**Royalty Period**" means the period of one (1) year following the Closing Date (or such other period as may be agreed by the Parties in writing).

o) "**Taxes**" means any and all U.S. federal, state, local, and non-U.S. taxes, fees, levies, duties, tariffs, imposts, and other charges of any kind (together with any and all interest, penalties, additions to tax, or additional amounts imposed by any Governmental Authority).

p) "**Transaction Documents**" means this Agreement and all agreements, certificates, instruments, and other documents to be executed or delivered pursuant hereto.

ARTICLE 2

PURCHASE AND SALE OF ASSETS

1. **Excluded Assets.** Notwithstanding anything to the contrary in this Agreement, the assets listed in Exhibit B (collectively, the "**Excluded Assets**") shall be retained by Seller and shall not be sold, transferred, assigned, conveyed, or delivered to Buyer hereunder. Specifically, and without limitation, the NFT (non-fungible token) developed by Seller and any Intellectual Property Rights exclusively relating thereto shall be deemed Excluded Assets.

2. **No Assumption of Liabilities.** Buyer shall not assume or be responsible for any Liabilities of Seller or related to the Purchased Assets that arise prior to the Closing Date, unless expressly set forth in this Agreement or in any Schedule hereto (the "**Assumed Liabilities**," if any). All Liabilities not specifically assumed by Buyer hereunder shall remain the sole responsibility of Seller (the "**Retained Liabilities**").

ARTICLE 3

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PURCHASE PRICE; ROYALTY; PAYMENT

1. **Purchase Price.** The purchase price for the Purchased Assets shall consist of: (a) Cash Consideration: Buyer shall pay to Seller the sum of One Hundred Dollars (US $100.00) (the "**Cash Consideration**") at Closing by wire transfer of immediately available funds; and (b) Royalty: The Royalty described in Section 3.2 below.

2. **Royalty.** (a) Royalty Rate and Period. As additional consideration for the Purchased Assets, Buyer shall pay to Seller a royalty (the "**Royalty**") equal to twelve and a half percent (12.5%) of Net Revenues earned and received by Buyer during the Royalty Period. (b) Reporting and Payment. Buyer shall provide Seller with quarterly written statements of Net Revenues (detailing gross revenue and deductible items), and the Royalty due thereon, within thirty (30) days after the end of each calendar quarter during the Royalty Period. Each such statement shall be accompanied by payment in full of the Royalty then due. (c) Books and Records; Audit. Buyer shall maintain complete and accurate books and records reasonably sufficient for Seller to verify the Royalty due hereunder. Seller or its designated representative shall, upon reasonable notice and during normal business hours, have the right to audit such books and records no more than once in any twelve (12) month period. The cost of any such audit shall be borne by Seller, unless such audit reveals an underpayment of Royalty of five percent (5%) or more, in which case Buyer shall promptly reimburse Seller for the reasonable cost of the audit.

3. **No Withholding.** All payments hereunder shall be made without deduction, setoff, or withholding of any kind, except as required by applicable law.

4. **Taxes.** Seller shall be solely responsible for any Taxes imposed on or with respect to the payment and receipt of the purchase price under this Agreement (excluding any taxes based on Buyer's net income).

ARTICLE 4

CLOSING

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EXHIBITS AND SCHEDULES

EXHIBIT A

Purchased Assets

1. All Intellectual Property Rights relating to the SSRWives brand, including but not limited to:

    - Trademarks, service marks, trade names, logos, and designs;
    - Copyrights and moral rights to artwork, code, and other creative content;
    - All domain names, websites, social media accounts, and registration/credentials thereof;
    - Trade secrets, know-how, processes, methods, and other proprietary information;
    - Any and all goodwill and other intangible rights associated therewith.

2. All source code, object code, documentation, design documents, and any other technical data or information relating to the SSRWives game.

3. All documents, records, files, and data (whether in physical or electronic form) exclusively related to the Purchased Assets, including marketing materials, vendor lists, customer lists, and promotional content.

EXHIBIT B

Excluded Assets

1. Any NFT (non-fungible token) developed by Seller and any Intellectual Property Rights or intangible rights exclusively pertaining thereto.

2. Any cash, cash equivalents, bank accounts, or deposits of Seller not explicitly included as part of the Purchased Assets.

3. Any personal or real property owned or leased by Seller not identified in Exhibit A.

4. Corporate records, minute books, tax returns, or other governance documents of Seller.

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2. Recordation and Further Actions. Assignor hereby authorizes the Commissioner for Trademarks in the United States Patent and Trademark Office, and the Register of Copyrights in the United States Copyright Office, and the officials of corresponding entities or agencies in any applicable jurisdictions to record and register this IP Assignment upon request by Assignee. Following the date hereof, upon Assignee's reasonable request, and at Assignee's sole cost and expense, Assignor shall take such steps and actions, and provide such cooperation and assistance to Assignee and its successors, assigns, and legal representatives, including the execution and delivery of any affidavits, declarations, oaths, exhibits, assignments, powers of attorney, or other documents, as may be reasonably necessary to effect, evidence, or perfect the assignment of the Assigned IP to Assignee, or any assignee or successor thereto.

3. Terms of the Purchase Agreement. The parties hereto acknowledge and agree that this IP Assignment is entered into pursuant to the Purchase Agreement, to which reference is made for a further statement of the rights and obligations of Assignor and Assignee with respect to the Assigned IP. The representations, warranties, covenants, agreements, and indemnities contained in the Purchase Agreement shall not be superseded hereby but shall remain in full force and effect to the full extent provided therein. In the event of any conflict or inconsistency between the terms of the Purchase Agreement and the terms hereof, the terms of the Purchase Agreement shall govern.

4. Successors and Assigns. This IP Assignment shall be binding upon and shall inure to the benefit of the parties hereto and their respective successors and assigns.

5. Governing Law. This IP Assignment and any claim, controversy, dispute, or cause of action (whether in contract, tort, or otherwise) based upon, arising out of, or relating to this IP Assignment and the transactions contemplated hereby shall be governed by, and construed in accordance with, the laws of the United States and the State of Florida, without giving effect to any choice or conflict of law provision or rule (whether of the State of Florida or any other jurisdiction).

6. Counterparts. This IP Assignment may be executed in counterparts, each of which shall be deemed an original, but all of which together shall be deemed one and the same agreement. A signed copy of this IP Assignment delivered by facsimile, e-mail, or other means of electronic transmission shall be deemed to have the same legal effect as delivery of an original signed copy of this IP Assignment.

[SIGNATURES PAGE FOLLOWS]

SSRWives game-IP complaint

Selected allegations | Filed November 3, 2025

XYZ AI, Inc. v. Sarah Balda et al.
Circuit Court of the Sixth Judicial Circuit, Pinellas County, Florida
Case 25-006213-CI | Filing 235038945

These pages contain the plaintiff's allegations. They document what XYZ AI claimed in its civil complaint about the game's source code, assets and equipment after employment terminations. This excerpt contains no court ruling or default judgment.

The complaint is a dispute over the buyer's game IP and equipment. It is not an NFT-holder action. The NFT exclusion in the acquisition agreement remains separately documented in E14.

EXCERPT	ORIGINAL	CONTENTS
2	1	Filed caption, named parties and filing stamp
3	7	Paragraphs 31-34: naming dispute; code/assets allegedly withheld; return demand
4	8	Paragraphs 34-38: equipment and continued use after termination; attempted other-account access
5	10	Paragraphs 48-56: contract-breach allegations
6	11	Paragraphs 57-64: conversion allegations
7	12	Paragraphs 64-70: return demands and NDA-performance allegations
8	15	Paragraphs 83-88: civil statutory claim alleging unauthorized taking of data

Source pages are reproduced complete and without changes to their visible content. Original page numbers are retained. This document guide identifies each source page. The full 119-page complaint is retained separately.

SHA-256 of the complete original complaint

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Filing # 235038945 E-Filed 11/03/2025 07:35:25 PM

IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PINELLAS COUNTY, FLORIDA
CIVIL DIVISION

XYZ, AI, INC., a Delaware corporation,

Plaintiff,

vs.

Case No.:

SARAH BALDA, an individual, SIMON DICKERMAN, an individual, CALEB WORKMAN, an individual, DAVID CORTES, an individual, and HEN STUDIOS, LLC, a Minnesota limited liability company,

Division:

Defendants.
_____/

COMPLAINT

XYZ AI, Inc. (the "Plaintiff"), by and through its undersigned counsel, hereby sues Sarah Balda ("Balda"), Simon Dickerman ("Dickerman"), Caleb Workman ("Workman"), David Cortes, Jr. ("Cortes"), and Hen Studios, LLC ("Hen Studios"), all of whom are collectively referred to herein as the "Defendants," and alleges:

A. PARTIES, JURISDICTION, AND VENUE

1. The Plaintiff is a Delaware corporation authorized to do business in Pinellas County, Florida.

2. Balda is an individual, sui juris, residing in Ramsey County, Minnesota.

3. Dickerman is an individual, sui juris, residing in Polk County, Florida.

4. Workman is an individual, sui juris, residing in Polk County, Florida..

5. Cortes is an individual, sui juris, residing in Tarrant County, Texas.

6. Hen Studios is a Minnesota limited liability company doing business in Pinellas County, Florida.

7. As to each cause of action asserted in this Complaint, this is an action for damages

to inquire if Balda was recording the conversation. Balda responded that she was, but because she was physically calling from Minnesota, a one-party consent state, it was not of Gherman's concern. Gherman promptly ended the phone call after this discovery and reported the unauthorized recording to local authorities.

31. During Gherman's conversation with Balda, she claimed that the APA was not valid because Hen Studios name as stated in the APA was "Studio Hen, LLC" when, in fact, the correct name of the entity was "Hen Studios, LLC."

32. On October 14, 2025, Balda was formally terminated from employment with the Plaintiff, evidenced by a termination letter (the "Balda Termination Letter) attached hereto as Exhibit "J." However, upon termination, Balda has since refused to remit crucial physical and intellectual property of the Plaintiff, including:

a. all source code, in any form or format;

b. all game assets, including graphics, audio files, animations, and design documents;

c. all databases, data files, and related documentation;

d. all build files, development tools, and proprietary software;

e. all copies of the foregoing, whether stored on personal devices, cloud storage, external drives, or any other medium; and

f. all business assets including social media accounts, and any other related intellectual property.

33. On October 16, 2025, the Plaintiff sent a letter to Balda (the "Balda Demand Letter") outlining the effect of the Governing Documents and, once again, demanding the return of all property owned by the Plaintiff, including the SSR IP. A copy of the Balda Demand Letter is attached hereto as Exhibit "K."

34. On October 13, 2025, the Plaintiff terminated the employment of Workman evidenced

by a termination letter (the "Workman Termination Letter") that contained a demand, pursuant to the 'Return of Materials section in the Workman NDA, to return all property owned by the Plaintiff. At this time, Workman has not returned the XYZ Equipment in his possession. In particular, the MacBook Air purchased by the Plaintiff for Workman's employment contains confidential information, including SSR IP and other work product of the Plaintiff. A copy of the Workman Termination Letter is attached hereto as Exhibit "L."

35. On October 16, 2025, the Plaintiff terminated the employment of Cortes evidenced by a termination letter (the "Cortes Termination Letter") that contained a demand, pursuant to the 'Return of Materials section in the Cortes NDA, to return all property owned by the Plaintiff. At this time, Cortes has not returned the XYZ Equipment in his possession. In particular, the Mac Mini purchased by the Plaintiff for Cortes' employment contains confidential information, including SSR IP. A copy of the Cortes Termination Letter is attached hereto as Exhibit "M."

36. At this time, Dickerman and the Employees have been working on SSR Wives even though they have been terminated by the Plaintiff and are still in possession of valuable Plaintiff property, including the XYZ Equipment and SSR IP, while refusing to return the same.

37. Dickerman and the Employees' refusal to return valuable tangible and intangible property of the Plaintiff precisely follows the plan hatched by Balda and Dickerman to oust the Plaintiff of its investment in SSR Wives.

38. Further, on November 2, 2025, Dickerman continued his pattern of undermining the Plaintiff's operations by attempting to personally take control of online accounts that belonged to the Plaintiff and were associated with other projects under development by the Plaintiff, including "Aidetect," "Rapid Resume," and "StealthGPT." Notably, Dickerman attempted to take over the StealthGPT "Namecheap" account – which holds the domain name for the StealthGPT website. However, Dickerman was ultimately not successful in taking control of these accounts.

48. Balda was also obligated to truthfully represent the validity of Hen Studio's name and status based on the explicit language of Article 5, Section 1 of the APA:

> Seller is a limited liability company duly organized, validly existing, and in good standing under the laws of the State of Minnesota. Seller has all requisite limited liability company power and authority to own, lease, or otherwise hold its properties and assets and to carry on its business as currently conducted.

49. Pursuant to the IP Assignment, Hen Studios agreed to irrevocably convey, transfer, and assign to the Plaintiff the SSR IP.

50. Pursuant to the Bill of Sale, Hen Studios did in fact transfer the SSR IP to the Plaintiff.

51. Hen Studios, through Balda, now asserts that it never transferred the SSR IP to the Plaintiff because Hen Studios is either a fictitious or dissolved entity.

52. Hen Studios materially breached the terms of the APA by failing to deliver the SSR IP to the Plaintiff.

53. Hen Studios materially breached the terms of the APA by falsely representing it is a duly organized, validly existing, and in good standing Minnesota limited liability company.

54. Hen Studios materially breached the terms of the APA by falsely representing that it possessed good and marketable title to the SSR IP.

55. Balda materially breached the terms of the APA by falsely representing Hen Studios name as "Studio Hen, LLC" when, in fact, the correct name of the entity was "Hen Studios, LLC."

56. The Plaintiff has suffered damages as a result of Hen Studios and Balda's material breach of the APA.

WHEREFORE, the Plaintiff demands judgment against Hen Studios and Balda for

damages resulting from Balda and Hen Studios' breach of the Governing Documents, together with Court costs and reasonable attorneys' fees, as well as all additional relief this Court deems just and proper.

COUNT II: CONVERSION AGAINST DICKERMAN AND THE EMPLOYEES

57. This is an action against Dickerman and the Employees for conversion of the SSR IP and other intellectual and physical property of the Plaintiff.

58. The Plaintiff reincorporates by reference the allegations contained in paragraphs 1 through 41 above as though fully set forth herein.

59. The Plaintiff has clear exclusive ownership right in the SSR IP and the XYZ Equipment. The Plaintiff views the XYZ Equipment and SSR IP as its property, the totality of which has considerable and monetary value to the Plaintiff.

60. The Plaintiff views the SSR IP as its property, the totality of which has considerable and monetary value to the Plaintiff.

61. The Employees have refused to acknowledge the Plaintiff's ownership of the SSR IP, despite entering into the Employee NDAs – which unequivocally require the Employees to return any property owned by the Plaintiff upon request.

62. Further, Hen Studios, through Balda, has wrongfully asserted that it owns the SSR IP by falsely claiming that the Governing Documents are void.

63. Since their termination, and without the consent of the Plaintiff, Dickerman and the Employees are continuing to use the SSR IP to develop SSR Wives, even though the Plaintiff has exclusive dominion over the SSR IP and related business assets.

64. The Plaintiff has repeatedly demanded return of all SSR IP since it became apparent that Balda and Dickerman had conspired to continue with SSR Wives without the Plaintiff's consent. The Plaintiff first demanded the return of the SSR IP in the Balda Termination Letter.

The Plaintiff demanded the return of the SSR IP once again in the Balda Demand Letter.

65. All the SSR IP and XYZ Equipment retained by Dickerman and the Employees has been wrongfully retained for the purposes of developing SSR Wives without the Plaintiff's consent. The Plaintiff has been harmed by Dickerman and the Employees' failure to return the SSR IP and the XYZ Equipment.

WHEREFORE, the Plaintiff requests judgment in its favor, awarding damages against the Hen Studios and Balda, for their conversion of the SSR IP, together with court costs and reasonable attorneys' fees recoverable pursuant to applicable law.

COUNT III: SPECIFIC PERFORMANCE
OF THE EMPLOYEE NDAS AGAINST THE EMPLOYEES

66. This is an action against Balda for specific performance of Balda's obligations under the Balda NDA.

67. The Plaintiff reincorporates by reference the allegations contained in paragraphs 1 through 41 above as though fully set forth herein.

68. Under the Employee NDAs, the Employees agreed to take all reasonable measures to avoid disclosure and unauthorized use of confidential information, and return all documents and tangible objects containing or representing confidential information upon request of the Plaintiff.

69. As defined by the Appendix of the Employee NDAs, confidential information includes all intellectual property, trade secrets, and associated intellectual property documentation. SSR IP falls squarely within this definition.

70. Thus, the Employees breached their respective Employee NDAs by (a) continuing to use and appropriate the SSR IP to develop SSR Wives following her termination from the Plaintiff, and (b) refusing to return all SSR IP, XYZ Equipment, and related documents to the Plaintiff despite the Plaintiff's repeated requests.

its damages in an amount to be proven at trial including its actual losses and unjust enrichment of the Defendants, attorneys' fees and recoverable costs of suit, compensatory and consequential damages including, but not limited to, lost profits, together with such other and further relief deemed just, equitable, and proper.

COUNT V: DAMAGES AGAINST ALL DEFENDANTS PURSUANT TO §§772.104 & 815.04, FLORIDA STATUTES

83. This is an action against the Defendants for damages pursuant to Florida Statutes §§772.104 and 815.04.

84. The Plaintiff reincorporates by reference the allegations contained in paragraphs 1 through 41 above as though fully set forth herein.

85. The Defendants willfully, knowingly, and without authorization took data and supporting documentation belonging to the Plaintiff that constitute trade secrets as defined in § 812.081 and confidential information as provided by law, including the SSR IP, as hereinabove defined (collectively, the "Converted Data"), in violation of §815.04(4).

86. The Converted Data resided or existed internal to the Plaintiff's computers, computer systems, computer networks, and/or electronic devices, including without limitation the XYZ Equipment.

87. The Defendants committed the multiple, willful, and unauthorized conversions of the Converted Data for the purpose of devising or executing a scheme or artifice to defraud the Plaintiff and to obtain property, goodwill, and business advantage belonging to the Plaintiff, in violation of §815.04(5)(b).

88. Pursuant to §§772.102(1)(a)(21) and 772.102(4), Florida Statutes, the Defendants' conversion of the Converted Data constitutes a "pattern of criminal activity."

SSRWives preliminary injunction

Order granting XYZ AI relief | Filed May 29, 2026

Circuit Court of the Sixth Judicial Circuit, Pinellas County, Florida
Case No. 25-006213-CI-19 | Judge Thomas Ramsberger

Page guide

EXCERPT	ORIGINAL	CONTENTS
2	4	Ownership and XYZ performance Finding 10
3	8	Source-code retention and subsequent conduct Findings 31-35
4	15	Valid contracts and material breaches Findings 55-57
5	16	Misappropriation, harm and likely success Findings 57-60
6	17	Injunction granted; prohibited conduct Operative paragraphs 1-2
7	18	Return, preservation, imaging and bond Operative paragraphs 2-8
8	19	Judge and electronic signature date May 29, 2026

Document handling

This excerpt contains seven complete pages from the 19-page court order. Original page numbers are retained. The complete order is included as preliminary_injunction_2026-05-29.pdf, with its original bytes unchanged. The selected source pages have not been redacted or rewritten. The court granted a preliminary injunction after two evidentiary hearing days.

SHA-256 of the complete original order

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10. Pursuant to the Governing Documents, the Plaintiff became the sole and exclusive owner of all intellectual property rights associated with SSR Wives, XYZ fulfilled all of its obligations under those agreements, and there is no ambiguity as to XYZ's ownership of the SSR IP.

11. On January 23, 2026, the United States Copyright Office issued Registration Number PAu 4-290-980, identifying the Plaintiff as the sole author and copyright claimant of SSR Wives, with a registration decision date of February 13, 2026. [Plaintiff's Ex. 75]. This federal registration constitutes prima facie evidence of the validity of the Plaintiff's copyright and of the facts stated in the certificate pursuant to 17 U.S.C. § 410(c).

C. The Non-Disclosure Agreements and Employment

12. The parties stipulated on the record that Dickerman, Balda, Cortes, and Workman (collectively, the "Individual Defendants") signed their respective agreements and that the signatures are authentic.

13. Plaintiff's Exhibits 13, 35, 53, and 62 establish that the Plaintiff paid the Individual Defendants as employees throughout their respective tenures, confirming the employment relationship and the Plaintiff's fulfillment of its obligations under the Governing Documents and the respective NDAs. [Plaintiff's Ex. 13, 35, 53, 62].

i. Dickerman: Employment, Consulting Agreement, and Confidentiality Agreement

14. The Dickerman NDA required Dickerman to maintain in strict confidence all non-public information obtained through his work for the Plaintiff. [Plaintiff's Ex. 12, ¶3(a)]. Such confidential information included technical data, trade secrets, know-how, research, product or service ideas or plans, software code, and marketing plans. [Plaintiff's Ex. 12, ¶3(b)]. The

31. Following their terminations, the Individual Defendants publicly misrepresented their ownership of the SSR IP on social media platforms including Discord, X, and Reddit, claiming to be the sole proprietors of all SSR Wives assets, source code, and development authority. [Plaintiff's Ex. 69, 70, & 71].

32. Cortes testified under oath at the hearing that he retains all SSR IP source code on his personal computer, notwithstanding the Plaintiff's repeated demands for its return.

33. Plaintiff's Exhibits 76 and 78 establish that Cortes is actively developing a new video game, Sin Chronicles, whose main menu interface is substantially similar to that of SSR Wives, evidencing misuse of SSR IP belonging to the Plaintiff. The Sin Chronicles and SSR Wives main menus are nearly identical in structure, options, aesthetic, and character design. [Plaintiff's Ex. 76 & 78]. Gherman testified that there is not a shadow of a doubt that the menus are similar and the central character closely resembles the main character from SSR Wives.

34. Plaintiff's Exhibits 26 and 27, establishes that Dickerman shared confidential and proprietary information belonging to the Plaintiff with representatives of Ryne AI, a direct competitor of the Plaintiff, including screenshots of an internal tool known as the "Social Media Dashboard," which was developed exclusively for internal use by the Plaintiff. [Plaintiff's Ex. 26 & 27]. Gherman testified that Ryne is Plaintiff's most direct and fiercest competitor in the StealthGPT market, and the information shared was not publicly available. Upon cross-examination, Dickerman's testimony confirmed that he was sharing Plaintiff's confidential information with a competitor.

35. Plaintiff's Exhibit 31 establishes that Dickerman has used confidential information gained during his employment with the Plaintiff to begin development of a product called Stealthagent.io, which describes itself as an invisible AI assistant that humanizes essays to bypass

materially breached the contract, and (c) the plaintiff suffered damages as a result of the defendant's breach. Synergy Contracting Grp., Inc. v. Fednat Ins. Co., 332 So.3d 62, 65 (Fla. 2d DCA 2021). Additionally, pursuant to Florida Statutes §688.003(1), misappropriation of trade secrets may be enjoined.

55. The Governing Documents are valid, executed contracts establishing the Plaintiff's ownership of the SSR IP. [Plaintiff's Ex. 1, 2, & 3]. The Plaintiff's ownership is further confirmed by Plaintiff's Exhibit 75, Registration Number PAu 4-290-980, which establishes prima facie evidence of the Plaintiff's copyright ownership as a matter of federal law pursuant to 17 U.S.C. § 410(c), and is self-authenticating pursuant to § 90.902(9), Florida Statutes.

56. The Employee NDAs and the Dickerman Agreements were stipulated to be signed and authentic. [Plaintiff's Ex. 11, 12, 34, 52, & 61]. The Dickerman Agreements and the Employee NDAs all impose clear obligations relating to confidentiality, use of the Plaintiff's proprietary information, and the return of all company property upon termination. The Plaintiff fulfilled all of its obligations under those agreements. [Plaintiff's Ex. 13, 35, 53, & 62]. Dickerman testified under oath that no signed written agreement exists regarding equity or ownership that supersedes the Dickerman Agreements, and the Consulting Agreement contains an Entire Agreement clause expressly superseding all prior or contemporaneous understandings between the parties. [Plaintiff's Ex. 11, ¶11(b)].

57. The Individual Defendants materially breached their respective NDAs and the Governing Documents in several independently sufficient ways. The Individual Defendants have failed to return the SSR IP and XYZ Equipment as demanded. [Plaintiff's Ex. 14, 36, 54, & 63]. Cortes testified under oath that the SSR Wives source code remains on his personal computer. The Individual Defendants have publicly claimed ownership over the SSR IP [Plaintiff's Ex. 69, 70, &

71], continued to develop SSR Wives and derivative works without authorization [Plaintiff's Ex. 76 & 78], disclosed confidential information and trade secrets to third parties including competitors [Plaintiff's Ex. 26 & 27], and made repeated unauthorized attempts to access the Plaintiff's accounts. [Plaintiff's Ex. 18, 19, & 20]. Dickerman has further used the Plaintiff's confidential information to develop a directly competing product. [Plaintiff's Ex. 31]. Dickerman appeared at the private residence of current employees in an attempt to solicit them to terminate their relationship with the Plaintiff in violation of his non-solicitation obligations. [Plaintiff's Ex. 73; Plaintiff's Ex. 12, ¶8(a)].

58. The disclosure of confidential information to Ryne AI and the development of Stealthagent.io not only violates the Dickerman NDA but constitutes misappropriation of trade secrets. The SSR IP, the Social Media Dashboard, and other confidential technical information constitute trade secrets within the meaning of Florida Statutes §688.002(4), as they derive independent economic value from not being generally known by others in the marketplace.

59. As a result of the breaches, the Plaintiff has suffered reputational injury, loss of goodwill, and loss of development control over SSR Wives. The Plaintiff has been deprived of the exclusive rights it bargained for under the contracts, including the right to control, develop, and commercialize the SSR IP. By misappropriating the SSR IP, claiming ownership over it, and continuing to use it for their own purposes, the Individual Defendants have dispossessed the Plaintiff of its interest in the SSR IP and any financial gain that could have resulted from developing the game on its own terms.

60. As a result of the foregoing, the Plaintiff is likely to succeed on the merits of its claim. The Court finds that the Plaintiff has met its burden on Element 3.

D. Element 4: Public Policy Considerations

61. The Plaintiff has established that injunctive relief would not contradict public policy. Florida law upholds the sanctity of binding contracts and discourages the unauthorized taking of another's property for one's own use. No evidence or argument was made that the requested injunction is against public policy. Florida defers to supporting the entry of injunctions when the elements are met. See Hatfield, 939 So. 2d at 158.

62. Accordingly, the public interest supports entry of the injunction. The Court finds that the Plaintiff has met its burden on Element 4.

Accordingly, it is **ORDERED** AND **ADJUDGED:**

1. The Plaintiff's Injunction Motion is **GRANTED**.

2. The Defendants, their officers, agents, servants, employees, and attorneys, and all persons acting in active concert or participation with them, are hereby prohibited from engaging in the following conduct, as defined as "Prohibited Conduct" in the Injunction Motion [Doc. 9]:

a. continuing to use the SSR IP to develop, launch, or promote SSR Wives;

b. using the SSR IP to develop any derivative game based upon or related to SSR Wives;

c. misappropriating SSR IP or any other property belonging to the Plaintiff;

d. modifying or altering any SSR IP or other property of the Plaintiff in their possession;

e. disclosing, proliferating, or disseminating the SSR IP, or any other intellectual property owned by the Plaintiff, to any other individual or entity;

f. representing to third parties or the public that they are the owners of the SSR IP;

g. infiltrating or exploiting online accounts and systems owned by the Plaintiff relating to its various business endeavors, including, but not limited to, Eryn, Aidetect, Rapid Resume, and StealthGPT, or attempting to do the same; and

h. contacting current employees or investors of the Plaintiff.

3. The Defendants are **ORDERED** to promptly return to the Plaintiff all of the Plaintiff's confidential, proprietary, and trade secret information in their possession, custody, or control within **10 days** of the entry of this Order.

4. The Defendants are **ORDERED** to immediately preserve and submit to forensic imaging all devices, media, or accounts in their possession or control that contain or may contain any SSR IP or other confidential information belonging to the Plaintiff within **20 days** from entry of this Order.

5. The Defendants are **ORDERED** to promptly return to the Plaintiff all XYZ Equipment within **10 days** from entry of this Order.

6. The Defendants are **ORDERED** to provide the Plaintiff with a complete list of any persons or entities with whom they have shared the Plaintiff's confidential information, with the exception of authorized Plaintiff personnel in connection with the Defendants' prior employment with the Plaintiff, within **10 days** from entry of this Order.

7. Based on stipulation of the parties, the bond for this injunction is set at **One Thousand Dollars ($1,000.00)** and shall be posted within **5 days** from entry of this Order.

8. This Court retains jurisdiction to enforce, clarify, or modify this Order, and to award such other relief as is necessary and appropriate.

DONE AND ORDERED at St. Petersburg, Pinellas County, Florida, this _____ day of May, 2026.

25-006213-CI 5/29/2026 10:12:32 AM
Circuit Judge Thomas Ramsberger
25-006213-CI 5/29/2026 10:12:32 AM

THOMAS RAMSBERGER
Circuit Judge

Copies Furnished via JAWS to:

John A. Anthony, Esquire
Julia G. Traina, Esquire
Harrison T. Otto, Esquire
Anthony & Partners, PLLC
janthony@anthonyandpartners.com
jtraina@anthonyandpartners.com
hotto@anthonyandpartners.com

Attorneys for the Plaintiff

Anthony Sabatini, Esquire
Francheska Sabatini, Esquire
Sabatini Law Firm, P.A.
anthony@sabatinilegal.com
francheska@sabatinilegal.com

Attorneys for Defendants